Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1484
Claimant:	Nathaniel Fleming
Adjuster:	Darin Tyler

08/30/2023
First notice of loss received for a side impact at an intersection, with the insured's vehicle struck on the driver's side by a second vehicle that entered on a red signal. The claimant has retained counsel, and all further contact is being routed through the attorney's office.

09/29/2023
Reviewed the policy declarations and confirmed the driver is named on the policy and the coverage was in force at the time of loss. Nothing in the underwriting file suggests the vehicle damage predates the coverage start.

10/17/2023
Obtained the police report, which places the claimant in the driver's seat and notes the other vehicle's failure to yield. Responding officers and a bystander confirm the claimant was in the vehicle at the scene.

11/21/2023
Reviewed the scene photographs, which confirm the point of impact and the general position of both vehicles. No independent witnesses have been identified beyond the officers and the bystander who gave a brief statement at the scene.

12/11/2023
Inspected the insured vehicle and found door panel crush and intrusion along the driver's side, consistent with the described impact. No prior damage to the vehicle has been identified in our records or in the repair history provided.

12/12/2023
Claimant reports neck pain beginning the day of the collision, described as a strain that limits rotation. Medical records from the initial visit document the complaint and the findings are consistent with the force and direction of the crash. No prior injury to the neck or upper back has been identified in the medical history.

12/22/2023
Spoke with the claimant's attorney, who confirmed the treatment plan. The claimant's account of the collision has been the same in every conversation, including the recorded statement, the iniital interview, and the written submission.

01/15/2024
Reviewed the treatment records, which show a usual course of physical therapy and follow-up visits. Symptoms have improved steadily and the frequency of visits has tapered as the claimant's range of motion recovered.

02/07/2024
Evaluated the injury against the mechanism of loss. The reported neck strain fits the kind and force of a side impact of this type, and the medical reviewer agreed the treatment is reasonable for the diagnosis.

03/10/2024
Current status is that the claim remains open pending the final treatment summary and the attorney's demand package. No further coverage questions are outstanding, and the file is being prepared for evaluation of the bodily injury component.

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Recorded Statement

Claim number:	C-1484
Statement of:	Nathaniel Fleming
Taken by:	Darin Tyler
Date:	07/30/2023

Q: Thanks for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather just be referred to as the claimant for this, if that's alright.

Q: That's fine. Can you describe where you were when the collision happened?

A: I was driving through an intersection in Pasadena, Texas, heading straight through on a green light.

Q: What happened as you entered the intersection?

A: A vehicle coming from my right ran the red light and hit the driver's side of my car. I saw it only a split second before impact, so I couldn't brake in time.

Q: Did you have any chance to avoid the other car?

A: No. It came across faster than I expected, and by the time I registered it, we had already collided.

Q: Were you injured?

A: Yes, my neck. I felt a sharp jolt and then stiffness right away. I've been dealing with soreness at the base of my neck and some tightness across my shoulders since then.

Q: Did you seek medical attention?

A: I was checked at an urgent care clinic the same day. They looked at my neck, gave me a prescription for pain relief, and recommended a follow-up with my regular doctor.

Q: Are you still experiencing symptoms?

A: Yes, the stiffness is better in the mornings but worsens after I've been sitting at my desk for a while. Turning my head to the left is still uncomfortable.

Q: Did anyone else witness the collision?

A: There was a pedestrian at the corner who I think saw the light change, but I don't have their contact information.

Q: Thank you. Is there anything you would like to add to your statement?

A: Only that I've been careful to follow my treatment plan, and I want my vehicle damage and medical costs taken care of properly.